THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH BENCH, CHANDIGARH

Item No. 4

CP (CAA) No.30/Chd/Hry/2024
(2nd Motion)

IN THE MATTER OF SCHEME OF MERGER OF:

FIM Holdco India Limited
Company Registered in Mauritius
Having its registered office at:
Level 6, Tower A, 1 Exchange Square,
Wall Street, Ebene-72201, Republic of Mauritius

….Transferor Company 1/ Amalgamating Company 1

AND

Ariston Investments Sub A Limited
Company Registered in Mauritius
Having its registered office at:
Level 6, Tower A, 1 Exchange Square,
Wall Street, Ebene-72201, Republic of Mauritius

….Transferor Company 2/ Amalgamating Company 2

WITH

One World Center Private Limited
Having its registered office at:
Plot No. 422B, Udyog Vihar, Phase IV
Village Dundahera, Gurugram, Gurgaon- 122016
CIN No. U45309HR2019PTC083279

…Amalgamated Company/ Petitioner Company

Under Section: 230 to 232 of the Companies Act, 2013 read with Section 234 of the Companies Act, 2013 and the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016

CORAM:

SH. D. ARVIND
HON'BLE MEMBER (T)

SH. HARNAM SINGH THAKUR
HON'BLE MEMBER (J)

PRESENT:

For the Petitioner Companies : Ms. Munisha Gandhi, Senior Advocate
Ms. Salina Chalana, Advocate
Mr. Vaibhav Sharma, Advocate

This is a second motion company petition filed by the Petitioner-Companies, namely; **FIM Holdco India Limited** (for short hereinafter referred to as Transferor Company 1/ Amalgamating Company 1"); **Ariston Investments Sub A Limited** (for short hereinafter referred to as Transferor Company 2/ Amalgamating Company 2") with **One World Center Private Limited** (for short hereinafter referred to as Amalgamated Company/ Petitioner Company") under Sections 230-232 of the Companies Act, 2013 (the Act) in relation to the composite scheme of compromise, Arrangement and amalgamation between the petitioner companies.

2. In its Petition, the Petitioner companies have prayed inter alia, to issue directions in relation to publication in press and notices to be issued to the authorities concerned in relation to the date of hearing of the petition and calling for objections.

3. The joint first motion application seeking directions for convening/dispensing with the requirement of the meetings of shareholders and secured and unsecured creditors in relation to the applicant companies was filed before this Tribunal by the applicant companies under Company Application No.24/Chd/Hry/2023, which was allowed by this Tribunal vide order dated 11.09.2023. The meetings of Equity Shareholders of the Applicant company were dispensed with as the consent of all the Equity shareholders of the Applicant Company towards dispensation of their meeting had been received by way of

affidavits. The meeting of Secured Creditors of the Applicant company was dispensed with as it had 1 (One) Secured Creditor and the consent of the Sole Creditor has been received by way of affidavit. The meeting of Unsecured Creditors of the Applicant company was dispensed with as it had 31 (Thirty-One) Unsecured Creditors and the consent of the Unsecured Creditors holding 99.77% in value had been received by way of affidavits.

4. Thereafter, the Petitioner company filed a Company Application CA 197 of 2023 seeking to place on record and seek sanction to the modified Scheme of Amalgamation. This modification was rejected by this Tribunal and the CA was dismissed vide order dated 22.04.2024. The Petitioner company filed an appeal against the aforesaid order, before the Hon'ble NCLAT titled as Company Appeal (AT) No. 169 of 2024, wherein it allowed the appeal vide order dt. 19.07.2024 setting aside the order dt. 22.04.2024 and further allowed the Petitioner company to file the second motion petition.

5. The notice of hearing will be advertised in "The Indian Express" (English) and "Jansatta" (Hindi), not less than 10 days before the next date fixed for hearing.

6. In addition to the above public notice, the Petitioner Companies shall serve the notice of the petition on the following Authorities namely, (a) the Central Government through the office of the Regional Director, Northern Region, Ministry of Corporate Affairs, New Delhi; (b) Concerned Registrar of Companies; (c) Concerned Official Liquidator; (d) Concerned Income Tax Department through its Nodal officer and the jurisdictional assessment office of the Petitioner Companies

by mentioning the PAN of the Petitioner Companies (e) Reserve Bank of India; along with a copy of this petition by speed post or hand delivery immediately.

7. The petitioner companies shall, at least 7 days before the date of hearing of the petition, file an affidavit of service regarding newspaper publication with newspaper clippings as well as service of notices on the authorities specified above.

8. Objections, if any, to the 'Scheme' contemplated by the authorities to whom notice has been given may be filed on or before the date of hearing fixed herein, failing which it will be considered that there is no objection to the approval of the 'Scheme' on the part of the authorities and this Tribunal will proceed in the matter, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder. The petitioner companies shall also file an affidavit stating the objections received from the public pursuant to the publication of a notice of hearing in the newspapers.

9. The next date of hearing of the petition shall be on **04.10.2024** for the consideration of the approval of the scheme as contemplated between the petitioner companies.

10. The Registry shall also report before the date fixed as to whether any objection has been received to the proposed 'Scheme'.

11. Let a copy of the order be provided to the Ld. Counsel for the Petitioner companies.

Sd/-
(D. Arvind)
Member (Technical)

Sd/-
(Harnam Singh Thakur)
Member (Judicial)

August 09, 2024
PKA